



Real Estate Regulatory Authority, Punjab

First Floor, Block-B, Plot No. 3, Sector-18 A, Madhya Marg, Chandigarh – 160018

Before the Bench of Sh. Rakesh Kumar Goyal, Chairman.

Phone No. 0172-5139800, email id: pschairrera@punjab.gov.in & pachairrera@punjab.gov.in

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| 1. Execution Application No. | 123 of 2022 & M.A. No. 58 of 2024 in GC No. 1379/2019 BFTR-AUTH0023/ 2022. |
| 2. Name & Address of the Applicant(s)/ Decree Holder(s)/ Complainant(s) | 1. Sh. Chander Shekhar S/o Sh. Neelkantheshwar Gundamalalu,
2. Ms. Upma Sharma W/o Sh. Chander Shekhar,
Both R/o House No. 141, Block C-4, Gulmohar Trends, Dhakoli, Zirakpur – 140603. |
| 3. Name & Address of the Judgment Debtor(s)/ Respondent (s) | 1. M/s ATS Estates Pvt. Ltd., through Managing Director/ Director, 711/92, Deepali, Nehru Place, New Delhi-110019.
2. M/s ATS Tower, Plot No. 16, Sector 135, Gautam Buddha Nagar, Uttar Pradesh-201035.
3. M/s ATS Golf Meadows Lifestyle, Village Madhopur, Tehsil Derabassi, SAS Nagar (Mohali)- 140507. |
| 4. Date of filing of Execution Application | :- 09.12.2022 |
| 5. Name of Counsel(s) for the Applicant, if any. | :- Sh. Ravindra Jain, Advocate |
| 6. Name of Counsel(s) for the respondents, if any. | :- Sh. J. P. Rana & Sh. Hardeep Singh Advocates for respondents |
| 7. Section and Rules under which order is passed | :- Section 40(1) of the RERD Act, 2016 r.w. Rule 24 and 25 of Punjab State RERD Rules, 2017 for execution of order dated 03.03.2022 passed in GC No. 1379/2019 BFTR-AUTH0023/ 2022. |
| 8. Date of Order | :- 03.08.2026 |

ORDER U/S. 40(1) OF REAL ESTATE (REGULATION & DEVELOPMENT) ACT, 2016 READ WITH RULES 24 AND 25 OF PUNJAB STATE REAL ESTATE (REGULATION & DEVELOPMENT) RULES, 2017.

The present applicants seek the execution of the order u/s 31 of Real Estate (Regulation & Development) Act, 2016 [(hereinafter referred as The Act, 2016 subsequently in this order)] dated 03.03.2022 passed in Complaint No. AdC1337 of 2019 by the Chairperson, Real Estate Regulation Authority, Punjab (Referred as The Authority subsequently in this order) titled as "Sh. Chander Shekhar S/o Sh. Neelkantheshwar Gundamalalu & Ms. Upma Sharma W/o Chander Shekhar, Both R/o House No. 141, Block Floor C-4, Gulmohar Trends, Dhakoli, Zirakpur-140603 (The Applicants/Decree Holders/ Complainants referred as Decree Holders subsequently in this



order) Vs. M/s ATS Estates Pvt. Ltd. 711/92, Deepali, Nehru Place, New Delhi & M/s ATS Tower, Plot No.16, Sector 135, Gautam Buddha Nagar, Uttar Pradesh-201035 & ATS Golf Meadows Lifestyle, Village Madhopur, Tehsil Derabassi, SAS Nagar, Mohali-140507" (Judgment Debtors/ The Respondents referred as Judgment Debtors subsequently in this order). The directions in the said order reads as under:-

8. As a result of the above discussion, the complaint is partly accepted and the respondent is directed to refund the amount deposited by the complainants with interest at the rate of 9.30% per annum (today's highest MCLR Rate 7.30% plus 2%) prescribed in Rule 16 of the Punjab State the Real Estate (Regulation and Development) Rules, 2017 till the date of actual refund. The amount of Rs.2,72,000/- is also allowed to be set off by the respondent. The payment should be made within the time stipulated under Rule 17 of the Punjab State Real Estate (Regulation and Development) Rules, 2017. It is however made clear that the parties would be bound by the terms and conditions of the tripartite agreement executed between them and HDFC.

2. The Decree Holders are allottees of apartment bearing no.11111 in Tower-11 in the project namely "ATS Golf Meadows Lifestyle" being developed by the Judgment Debtor at Village Madhopur Tehsil Derabassi, District SAS Nagar Mohali. The basic sale price for the flat was ₹.60,70,500/-. The due date for possession was 48 months from date of start of the construction. There was delay in the start of construction of Tower-11. The complainants sought the refunds for the various defaults by the respondents. The complainants had paid an amount of ₹.29,44,301/-.

3. Thus, this Authority by way of an order u/s. 31 of The Act, 2016 dated 03.03.2022 in the case of Sh. Chander Shekhar & Anr. v. M/s ATS Estates Pvt. Ltd. & Others held that the respondents are liable to refund the amount deposited by the complainants alongwith interest at the rate of 09.30% from the date of deposit till the date of actual refund within 90 days from the date of order. Further the amount of ₹.2,72,000/- was allowed to be set off by the respondents. The direction was also issued to the effect



that the parties are bound by the terms and conditions of the tripartite agreement executed between them and HDFC. As the respondents did not comply with the said order, the complainants filed execution application on 09.12.2022. Therefore, on the date of filing execution application, the respondents were absolute defaulter in terms of compliance with the said order passed u/s 31 of The RERD Act, 2016 dated 03.03.2022 passed in GC No. AdC1337 of 2019 to the extent of refund of amount paid and payment of interest payable u/s 18(1) of The RERD Act, 2016. As per information filed by the applicants/ decree holders, the bank loan has been paid off.

4. In consequence of filing of execution application, a notice was issued to appear and submit reply, to the Judgment Debtors i.e. M/s ATS Estates Pvt. Ltd. & others

5. Regular proceedings have taken place from time to time. A few of the interim orders are being reproduced herein after. The interim order dated 12.10.2023 reads as under:-

Learned Counsel for the respondents undertook that he will make the payment of Rs.44,95,538.00 in six equated monthly installments. Learned Counsel for the complainants has no objection. Today, learned Counsel for the respondent has handed over two cheques of Rs.75,000/- each in favour of Chander Shekhar Gundamalulu and Upma complainants bearing numbers 026586 and 025587 both dated 11.10.2023 drawn on Kotak Mahindra Bank. Learned Counsel for the respondent has further agreed that interest due for these six months shall be paid to the complainants in the last installment. Learned Counsel for the complainants agreed with the aforesaid contention of the learned Advocate of the respondent. It is made clear that in case the entire amount is not paid within six months' time as promised by the learned Counsel for the respondent then action under penal provisions of the Act of 2016 will be initiated.

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6. The interim order dated 14.12.2023 reads as under:-

The learned Counsel for the respondent paid Rs.75,000/- vide cheque No.026773 dated 13.12.2023 and additional Rs.75,000/- vide cheque No.026774 dated 13.12.2023 to the learned Counsel of the Complainants.



The learned Counsel of the complainant stated that the respondent should pay at least an amount of Rs.7,00,000/- by 12.01.2024. The learned Counsel for the respondent agreed to the same.

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7. The interim order dated 18.01.2024 reads as under:-

In compliance of interim order dated 14.12.2023, the learned Counsel for the respondents paid Rs.3,50,000/- vide Cheque No.000554 dated 17.01.2024 and additional Rs.3,50,000 vide Cheque No.000555 dated 17.01.2024 in favour of Chander Shekhar and Upma to the learned Counsel of the Complainants. The learned Counsel of the respondents stated that they will pay handsome amount on the next date of hearing.

It has been made clear to the learned Counsel for the respondents that the entire amount has to be paid in six equated monthly installments.

The learned Counsel for the complainants has no objection.

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8. The interim order dated 18.04.2024 reads as under:-

Pursuant to the order dated 01.04.2024 passed by the Hon'ble Supreme Court of India in SLP(C) No.7152 of 2024 titled "State of Punjab and Anr. Versus Keerti Sandhu and Ors.", file taken up today.

Counsel for the respondent committed that he will clear the payments in stipulated time as directed by this Authority and sought 3 weeks time. Accordingly, respondent is hereby directed to make the payment on pro-rata basis before the next date of hearing.

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9. The interim order dated 20.09.2024 reads as under:-

None appeared on behalf of the respondents. On the other hand, an email has been received from Sh. Hardeep Saini, Advocate seeking adjournment/ directions in terms of Section 96 of Insolvency and Bankruptcy Code, 2016. Same is placed on record and complainant is directed to obtain copy of the same from the Registry of this Authority. Learned counsel for the complainant vehemently argued that till date, only Rs.10 lakhs has been received by the complainant/ DH and after January, 2024, nothing has been paid by the respondents. The respondents are directed to show cause as to why proceedings for non-compliance of orders of this Authority should not be issued against them. Show cause Notice be issued by legal Section accordingly directing the respondent to file reply of the same within 15 days alongwith payment schedule (to be paid in compliance with the orders of this Authority).



10. The interim order dated 24.10.2024 reads as under:-

The learned Counsel for the complainants stated that out of Rs.46.84 lakhs, a sum of Rs.10.74 lakhs have been released by the respondents so far and the remaining payment is yet to be released. The learned Counsel for the respondents prayed for short time to release further payment. The learned Counsel for the complainants has no objection if short time is granted to the respondents to release the balance payment. This is allowed.

11. The interim order dated 12.11.2024 reads as under:-

Vide Order Memo No. RERA/Pn/Legal/2024/10532 dated 25.10.2024, present file has been transferred to this Bench for proceeding further.

No one appeared for the complainant. Ld. Counsel for the respondent stated that till date he had made approx. payment of Rs.15.00 lakhs out of which 5 lakhs had been today itself and receiving of the same duly signed by the complainant has been submitted the respondent's counsel. Further, schedule has also been submitted by the respondent's counsel of remaining balance amount to be paid to the complainant, which will be made in 6 installments.

Since, the complainant has not attended today's proceedings, he was has given an opportunity to respond the same and in case of non-appearance on the next date of the complainant, it will be assumed that the schedule submitted by the respondent is acceptable to the complainant. Further, respondent is also directed to adhere to the schedule in case complainant does not file any objection on the next date of hearing. Respondent is also directed to make 3 installment by the next date of hearing as mentioned in the schedule.

12. The interim order dated 08.07.2025 reads as under:-

None appeared on behalf of the complainant. Learned counsel for the respondent submitted that he has brought a Demand Draft (DD) amounting to Rs.2.5 lakh in favour of the complainant and undertook to hand over the same to the complainant within 3 days.

Payment details of the complainant is already on record.

To come up on 04.08.2025 for further proceedings.

Complainant be informed accordingly.

Further, the complainant is hereby directed to submit the information in tabular form mentioned in 'Annexure A'. Respondents are also directed to submit the information in the tabular form mentioned in 'Annexure-A'. The respondent is hereby given an opportunity to



submit its comments regarding the authenticity, correctness and accuracy.

13. The interim order dated 04.08.2025 reads as under:-

When the matter was taken-up, Learned counsel for the respondent submitted that he has brought two Demand Drafts (DD) amounting to Rs.1.5 lakh (each) favour of the complainants and hand over the same to the Ld. Counsel for complainant.

Bench was ready to pass the execution order but both parties requested to keep it pending for the sake of recovery. Both are directed to file their latest calculation upto 31.07.2025 on the next date of hearing.

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14. The interim order dated 10.03.2026 reads as under:-

Both the parties had submitted their respective details of payments paid and received with each other. However, the complainant has disputed the amount of ₹.74,962/- allegedly received on 12.04.2023 while acknowledging the sheet of cheques but contending that the said payment has not been credited in their account. It is noted that this objection has been raised for the first time at this stage. Sh. Hardeep Saini is directed to produce the ledge of the promoter to demonstrate that payment of ₹.37,481/- each to the complainants has been duly credited or debited in their accounts, showing that the payment has been effected. The complainant is also directed to verify all its accounts in respect of the amount of ₹.74,962 reflected in their sheet. The remaining amount has been shown date-wise and acknowledged as having been received on the respective dates. The final calculation shall be undertaken by this Bench after hearing the case fully.

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15. The interim order dated 28.04.2026 reads as under:-

When the matter was taken-up, both the parties made a joint request that the payments are to be verified. Bench was ready to pass the execution order but both parties requested to keep it pending for the sake of recovery. In the interest of justice, the matter is adjourned for the next date of hearing.

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16. The interim order dated 12.05.2026 reads as under:-

When the matter was taken-up, Ld.counsel for the complainant requested due to some personal difficulty of the arguing counsel to which Ld. Counsel for the respondent has no objection. Perusal of the file reveals that the matter is pending since 19.02.205 for arguments



and no further adjournment will be granted to any of the party.

It is apparent from the above that this Authority was ready to pass the order but the matter was kept pending on the request of both the parties.

17. The complainants/ applicants in their calculation has simply stated that the interest @ 9.30% on the principal amount ₹.29,44,301/-, comes to ₹.28,41,237/- upto the date of 31.12.2025. According to them, they have received an amount of ₹.48,77,360/- and the balance is yet to receive.

18. The scanned copy of calculation of payments received towards the cost price of flat, amount refunded and interest on the refund, filed by the judgment debtors/ respondents/ promoters is as under:-

Project : ATS Golf Meadows Lifestyle CHANDRA SHEKHAR GUINMALIAU-B-15200208
Name of the Client : Chander Shekhar
Flat No : 13333
Date of Decision : 03-Apr-2023

App Recd.	App Refunded	Balance	Date From	Date Up to	No of Days	Int %	Total Int.
50,000	-	50,000	25-Feb-17	20-Mar-17	23	9.30%	239
881,676	-	931,676	20-Mar-17	8-Sep-17	173	9.30%	41,509
2,003,425	-	2,884,881	8-Sep-17	12-Apr-23	2041	9.30%	1,591,141
-	24,360	2,860,521	12-Apr-23	11-Oct-23	182	9.30%	100,059
-	130,000	2,730,521	11-Oct-23	19-Dec-23	63	9.30%	42,651
-	150,000	2,580,521	13-Dec-23	17-Jan-24	35	9.30%	22,923
-	200,000	2,380,521	17-Jan-24	11-Mar-24	259	9.30%	140,423
-	240,000	2,140,521	11-Mar-24	19-Jun-24	79	9.30%	30,174
-	527,529	1,612,992	19-Jun-24	17-Aug-25	38	9.30%	8,940
-	527,529	1,085,463	17-Aug-25	17-Feb-26	31	9.30%	2,792
-	195,481	-	17-Feb-26	17-Feb-26	0	9.30%	-
2,944,301	4,944,301	-	TOTAL AMOUNT		-	-	1,866,239

CALCULATION OF REFUND PAYABLE TO CUSTOMER	
DESCRIPTION	AMOUNT
AMT PAID BY CLIENT AGAINST	2,944,301
INTEREST ON REFUND	1,836,229
ADD - INTEREST ON LATE PAYMENT OF REFUND	71,796
AMOUNT REFUNDABLE TO CLIENT	4,852,326
AMT ALREADY REFUND TO CLIENT	4,552,326
BALANCE AMOUNT REFUNDABLE	0

Calculation of Interest on Refund							
App Recd.	App Paid	Balance	Date From	Date Up to	No of Days	ROI	Amount
1,836,229	114,448	1,721,781	17-Feb-25	29-Mar-25	40	9.30%	38,160
-	547,929	1,173,852	29-Mar-25	1-Jul-25	100	9.30%	32,457
-	250,000	923,852	2-Jul-25	2-Aug-25	31	9.30%	8,793
-	200,000	723,852	2-Aug-25	6-Sep-25	37	9.30%	8,624
-	860,000	423,852	6-Sep-25	27-Oct-25	49	9.30%	5,290
-	260,000	163,852	27-Oct-25	6-Dec-25	40	9.30%	3,280
-	255,648	(71,796)	6-Dec-25	6-Dec-25	0	9.30%	-
1,836,229	4,998,421	-	TOTAL AMOUNT		-	-	71,796

19. The calculation sheets filed were exchanged between the parties. As per the record of proceedings dated 10.03.2026, the complainants/ applicants had disputed the receipt of ₹.74,962/- on 12.04.2023. The respondents were directed to produce ledger account so as to demonstrate that the said amount has been duly credited or debited in their accounts. Till passing of this order, the compliance has not been made by the respondents/ promoters. Therefore, it is held that the refund of ₹.74,962/- has not been received by the complainants/ applicants.



20. I have duly considered the order passed u/s 31 dated 03.03.2022, the application filed by the applicants/ decree holders, the reply/ miscellaneous application No. 58 of 2024 filed by the respondents/ judgment debtors and the arguments of the parties. The counsel for the respondents has contended that the respondents/ judgment debtors are under moratorium as the director of the holding company is under insolvency. This plea is not acceptable. The Real Estate Regulatory Authority and Real Estate Regulation Act were institutionalized as a homebuyer protection authority and statute/ mandating registration, disclosure and timely completion of projects to protect individuals who had invested their life savings in the dream of home ownership. If a director has provided a personal guarantee for a company loan, the lender can go after the director's personal assets to recover the debt. A company is a separate entity from its directors and shareholders. A director's personal insolvency means they are an "undischarged insolvent" and may be disqualified from managing a company, but this does not directly or indirectly affect the insolvency of any company including its subsidiary company. Under the Companies Act, the company and its shareholders/ directors have distinct identity. The company has its own legal entity and common seal. The doctrine of limited liability treats each company as a separate legal person, distinct from its shareholders. Similarly, subsidiary company incorporated under the Companies Act enjoys its own legal personality. The owning of shares in a subsidiary company does not make the parent company, the owner of the subsidiary company's assets not to talk of the directors of parent company. In other words, a holding company is not automatically entitled to the assets of its subsidiary company, even if it owns hundred percent of shares of subsidiary company. The Hon'ble Supreme Court in a judgment dated 23.07.2024 in Civil Appeal No. 4565 of 2021 in the case titled as BRS Ventures Investments Ltd. vs. SREI Infrastructure Ltd. & Anr. has held as under:-

A holding company and its subsidiary are always distinct legal entities. The holding company would own shares of the subsidiary company. That does not make the holding company the owner of the subsidiary's assets. In the case of Vodafone International Holdings BV, this Court took the view that if a subsidiary company is wound up, its assets do not belong to the holding company but to the liquidator. As mentioned in the decision, the reason is that a company is a separate legal persona and the fact that the parent company owns all its share has nothing to do with its separate legal existence. Therefore, the assets of the subsidiary company of the corporate debtor cannot be part of the resolution plan of the corporate debtor.



20.1 The Hon'ble National Company Law Appellate Tribunal ("NCLAT") in the matter of Flat Buyers Association Vs. Umang Realtech Private Limited through IRP and Others held that if the allottees, financial institutions / banks or operational creditors of a project initiate the CIRP proceedings of a real estate company then it should be confined to the said project and should not include other projects of the real estate company. It was observed in the said judgment that different projects of a real estate company would be situated at different places, where separate plans are approved by different authorities, landowners may be distinct from the real estate company in question and the allottees, financial institutions / banks and operational creditors of each project would also be different for each project. As there is no insolvency resolution plan against the project under consideration now, the plea of respondents/ judgment debtors is rejected. The execution proceedings cannot be stayed and is being proceeded with.

21. In my considered view, the execution proceedings are limited to the implementation of the directions contained in the main order passed u/s 31 on 03.03.2022. Addition of new or additional facts without any supporting documents at this belated stage lies beyond the scope of these proceedings and cannot be adjudicated in the present execution proceedings. Therefore, based on the written and oral submissions of the applicants/ decree holders & respondents/ judgment debtors and the material available on record, it is held that the respondents i.e. M/s ATS Estates Pvt. Ltd. and others had failed to comply with orders passed u/s 31 of the Real Estate (Regulation and Development) Act, 2016 dated 03.03.2022 in this case.

22. As per the above said order, the Judgement debtors/ promoters are liable to refund the amount of ₹.29,44,301/- deposited by the decree holders/ applicants with interest at the rate of 9.30% p.a. from the date of deposit till the date of actual refund besides set off ₹.2,72,000/- paid by the respondents to the applicants. The interest should be calculated from the next month to the date on which payment/ deposit was made with promoter to the month previous to the date when the refund is made. The amount refunded by the promoter shall first, adjust against the interest payable and if the balance is left, such amount of refund shall be adjusted against principal amount to be refunded. The amount of interest becoming payable/ due from due date of date of deposit to the date of refund is as under:-



Interest payable from	Interest Calculated till	Principal Amount	Refund Amount	Interest Rate	Tenure (Months)	Interest Amount
01.03.2017	31.03.2022	50,000		9.30%	61	23,638
01.04.2017	31.03.2022	8,91,676		9.30%	60	4,14,629
01.10.2017	31.03.2022	20,02,625		9.30%	54	8,38,099
TOTAL		29,44,301				12,76,366
				Less Amount allowed to be set off		2,72,000
Balance Principal Payable		29,44,301	Balance Interest Payable			10,04,366
01.4.2022	31.10.2024	29,44,301		9.30%	31	7,07,368
			Balance Interest Payable as on 01.11.2024			17,11,734
			15,00,000	Less amount refunded till 11.11.2024		15,00,000
Balance Principal Payable		29,44,301	Balance Interest Payable			2,11,734
01.11.2024	30.11.2024	29,44,301		9.30%	1	22,818
			Balance Interest Payable as on 01.12.2024			2,34,552
		2,73,377	5,07,929	Less amount refunded on 10.12.2024		2,34,552
Balance Principal Payable		26,70,924	Balance Interest Payable			NIL
01.12.2024	31.12.2024	26,70,924		9.30%	1	20,700
			Balance Interest Payable as on 01.01.2025			20,700
		4,87,229	5,07,929	Less amount refunded on 17.01.2025		20,700
Balance Principal Payable		21,83,695	Balance Interest Payable as on 17.01.2025			NIL
01.01.2025	31.01.2025	21,83,695		9.30%	1	16,924
		4,91,005	5,07,929	Less amount refunded on 17.02.2025		16,924
Balance Principal Payable		16,86,326	Balance Interest Payable as on 17.02.2025			NIL
01.02.2025	28.02.2025	16,92,690		9.30%	1	13,118
		4,94,811	5,07,929	Less amount refunded on 29.03.2025		13,118
Balance Principal Payable		11,97,879	Balance Interest Payable as on 29.03.2025			NIL
01.03.2025	30.06.2025	11,97,879		9.30%	4	37,134
		2,12,866	2,50,000	Less amount refunded on 07.07.2025		37,134
Balance Principal Payable		9,85,013	Balance Interest Payable as on 07.07.2025			NIL
01.07.2025	31.07.2025	9,85,013		9.30%	1	7,634
		2,92,366	3,00,000	Less amount refunded on 02.08.2025		7,634
Balance Principal Payable		6,92,647	Balance Interest Payable as on 02.08.2025			NIL
01.08.2025	31.08.2025	6,92,647		9.30%	1	5,368
		2,94,632	3,00,000	Less amount refunded on 08.09.2025		5,368
Balance Principal Payable		3,98,015	Balance Interest Payable as on 08.09.2025			NIL
01.09.2025	30.09.2025	3,98,015		9.30%	1	3,061
		1,96,939	2,00,000	Less amount refunded on 27.10.2025		3,061
Balance Principal Payable		2,01,076	Balance Interest Payable as on 27.10.2025			NIL
01.10.2025	30.11.2025	2,01,076		9.30%	2	3,117
		2,92,531	2,95,648	Less amount refunded on 06.12.2025		3,117
Total Amount Refunded By Promoter			48,77,364			
Balance Principal Payable		(-)91,455	Balance Interest Payable as on 06.12.2025			NIL



22.1 The respondents/ promoters have paid total of ₹.48,77,364/- consisting of ₹.29,44,301/- as principal amount and ₹.19,33,063/- as interest accrued amount while as per the calculation above, the interest accrued amounts to ₹.18,41,608/-. Therefore, it is observed that the respondents/ promoters have paid ₹.91,455/- in excess to the applicants/ complainants.

22.2. The principal adopted for adjustment of refund against principal & interest is to first adjust against the interest payable on the said date of payment and thereafter, the balance amount shall be adjusted against the principal. For example, the judgment debtors/ respondents have made payments of ₹.15,00,000/- from 11th October, 2023 to 11th November, 2024 to the applicants/ complainants. On the said date, the interest payable was more than the payments made by the judgment debtors/ respondents. Therefore, all the payments till the said date are adjusted against interest payable. However, the respondents/ judgment debtors have adjusted the payments first against the principal and thereafter started adjusting the payments against interest payable which is not correct method. Therefore, there is difference between the calculation furnished by the respondents/ judgment debtors and the calculation made in this order.

23. Therefore, an amount of ₹.91,455/- has been excess paid by the judgment debtors/ respondents to the applicants/ complainants. It is observed that the respondents/ judgment debtors has rightly taken the interest @ 9.3% to be granted to applicants/ decree holders and therefore, is liable to receive back excess payment of ₹.91,455/-. In fact, the equity and justice demands that the decree holders should be directed to refund the excess payment received, to the respondents/ judgment debtors/ promoters immediately.



24. Therefore, on the principles of equity and justice, the decree holders cum applicants cum complainants cum allottees are hereby directed to refund the excess payment of ₹.91,455/-to the judgment debtors cum respondents cum promoters within 30 days of this order. In case of default, the judgment debtors cum respondents cum promoters are free to take necessary action as per law.

25. The present execution application is being disposed off accordingly.

Chandigarh
Dated: 03.08.2026



(Rakesh Kumar Goyal)
Chairman,
RERA, Punjab.

F. No. Endst. No./CP/RERA/PB/PA/Sec.40/ 995-1003

Date: 03 .08.2026

A copy of the above order is being sent to the followings for information as well as for their further necessary action:-

1. Sh. Chander Shekhar S/o Sh. Neelkantheshwar Gundamalalu, R/o H. No. 141, Block C-4, Gulmohar Trends, Dhakoli, Zirakpur - 140603.
2. Ms. Upma Sharma W/o Sh. Chander Shekhar, R/o House No. 141, Block C-4, Gulmohar Trends, Dhakoli, Zirakpur - 140603.
3. M/s ATS Estates Pvt. Ltd., through Director, 711/92, Deepali, Nehru Place, New Delhi-110019.
4. M/s ATS Tower, Plot No. 16, Sector 135, Gautam Buddha Nagar, Uttar Pradesh-201035.
5. M/s ATS Golf Meadows Lifestyle, Village Madhopur, Tehsil Derabassi, SAS Nagar (Mohali)- 140507.
6. The Secretary, RERA, Punjab.
7. The Director (Legal).
- ✓ 8. The Complaint File.
9. The Master File.

(Sawan Kumar)
P.A. to Chairman,
RERA, Punjab